



CHAPTER clxv.

An Act to remove doubts concerning the pension fund of the Great Central Railway Company's salaried officers and clerks and to restore the pension rights of the members of that fund. A.D. 1914.
[7th August 1914.]

WHEREAS in the year one thousand nine hundred and five under the authority of the Great Central Railway (Pension Fund) Act 1905 the Great Central Railway Company (hereinafter referred to as "the Company") established a pension fund (hereinafter referred to as "the pension fund") for the benefit of their salaried officers and clerks engaged on monthly or longer agreements as distinguished from servants employed on weekly wages who are not eligible for membership of the pension fund and there are now upwards of three thousand seven hundred contributing members of the pension fund and eighty-four pensioners:

And whereas in the spring of the year one thousand nine hundred and twelve the general strike of the coal miners of the United Kingdom diminished the ordinary flow of traffic on the railway of the Company reduced the Company's normal revenue and to a great extent stopped the work upon which the Company's staff is employed and in order to meet these circumstances the Company in the months of February and March one thousand nine hundred and twelve served upon the majority of their clerical staff notices determining the then current contract of employment which was by monthly engagement and substituting engagement from day to day only as the exigencies of the traffic might require:

And whereas the said coal miners' strike terminated about the middle of the month of April one thousand nine hundred

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A.D. 1914. — and twelve and thereupon the Company cancelled the arrangements for day to day employment and resumed the monthly engagements of the clerical staff:

And whereas doubts arose as to the effect which the said temporary interruption of employment might have had upon the membership of the pension fund having regard to the terms of the Great Central Railway (Pension Fund) Act 1905 and the rules of the pension fund scheduled thereto and proceedings were taken in the High Court of Justice and the Court of Appeal and the judgments on these proceedings have decided that the said notices of suspension have had the unintended effect of either destroying or very seriously reducing the pension rights of the bulk of the members upon whom they were served:

And whereas it is expedient that the pension rights of the members of the pension fund may be restored:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short title.

1. This Act may be cited as the Great Central Railway (Pension Fund) Act 1914.

Interpretation.

2. In this Act the expression—

“The Company” means the Great Central Railway Company.

Membership of pension fund not to be affected by coal strike notices of 1912.

3.—(1) For the purposes of the Great Central Railway (Pension Fund) Act 1905 and of the rules made thereunder the members of the Great Central Railway Pension Fund who during the coal miners' strike in the spring of the year one thousand nine hundred and twelve received from the Company notices terminating their monthly agreements of service shall not thereby be deemed to have been removed from the service of the Company within the meaning of the said rules or thereby to have become ineligible for continued membership of the said pension fund.

(2) In and for the purposes of this section the expression "members of the Great Central Railway Pension Fund" shall mean all persons who were contributing members of the Great Central Railway Pension Fund and who received a notice from the Company in one or other of the forms set forth in Part I. of the schedule to this Act or to the like effect and who subsequently received a notice from the Company in the form set forth in Part II. of the schedule to this Act or to the like effect. A.D. 1914. —

(3) Provided that the persons whose names are set forth in Part III. of the schedule to this Act shall on the day after the Bill for this Act receives the Royal Assent be deemed to be removed by the directors of the Company from the service of the Company and shall be entitled to superannuation allowances calculated as from that day in accordance with the table contained in Rule 10 of the schedule to the Great Central Railway (Pension Fund) Act 1905 and the Company shall pay such superannuation allowances to those persons respectively during the remainder of their respective lives.

4. Nothing in this Act contained shall take away or affect the rights of William Henry Terry Porter to continue to receive the superannuation allowance to which he is entitled in accordance with the judgment of the Court of Appeal in the matter of an arbitration between William Henry Terry Porter applicant and Sir Edward Henry Fraser D.C.L. and others respondents. For protection of William Henry Terry Porter.

5. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act shall be paid by the Company. Costs of Act.

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Fund) Act, 1914.*

A.D. 1914.

The SCHEDULE to the foregoing Act.

PART I.

FORMS OF NOTICE ISSUED BY THE COMPANY TO THEIR SALARIED
OFFICERS AND CLERKS DURING THE COAL MINERS' STRIKE
OF 1912 TERMINATING THE MONTHLY ENGAGEMENTS.

GREAT CENTRAL RAILWAY.

DEAR SIR,

With reference to the General Manager's Circular No. 683
dated February 16th as to your services being dispensed with
temporarily :

It is necessary to give you notice that your engagement will
terminate on the.....or on the earliest
possible subsequent date on which this notice can legally operate.

If the Company are able to find you employment after the expiration
of this notice you will be engaged from day to day only as the
exigencies of the traffic may require.

Signed.....

Date.....

Mr.....

GREAT CENTRAL RAILWAY.

DEAR SIR,

With reference to my notice to you dated.....I now
beg to inform you that the Company will continue you in their
service in your present capacity from the termination of that notice
from day to day to perform such duties as you may be called upon
for until the resumption of regular working at a proportionate
remuneration for each day during which you are employed based
upon the rate of your salary when you were in full employment.

It is hoped that circumstances will before long permit of a regular
resumption of the service but in any case you may rely on employ-
ment for at least one day a week throughout the period of inter-
ruption.

Signed.....

Date.....

Mr.....

PART II.

A.D. 1914.

FORM OF NOTICE ISSUED BY THE COMPANY REINSTATING
THEIR OFFICERS AND CLERKS ON MONTHLY ENGAGEMENTS.

GREAT CENTRAL RAILWAY.

22nd April 1912.

DEAR SIR,

With reference to my notice to you dated.....the
arrangement under which you have been employed from day to day
ceases as from the 20th instant and the monthly arrangement of
employment will be resumed in the ordinary course.

.....
Mr.....
.....

PART III.

NAME OF OFFICER OR CLERK ENTITLED TO SUPERANNUATION
ALLOWANCE.

- 1 James Barrick of 16 Tyne Street Hull.
- 2 Thomas Albert Hassall of 33 Albion Road Fallowfield Manchester.
- 3 Francis Simpson of York House Knutsford Road Gorton
Manchester.
- 4 John William Harpham of 7 City Road Higher Openshaw
Manchester.
- 5 John Charles Ritchie of 65 Haworth Road Gorton Manchester.
- 6 William Elliott Perkins of 13 Blake Street Upperthorpe
Sheffield.
- 7 Richard Parr of Blacker Road Staincross near Barnsley.
- 8 John William Tanton of 2 Grosvenor Avenue Wyndham Street
Hull.

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